

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BAGIROV AND OTHERS v. AZERBAIJAN

(Applications nos. 53360/18 and 27340/19)

JUDGMENT

STRASBOURG

8 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Bagirov and Others v. Azerbaijan,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 January 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Azerbaijan lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Azerbaijani Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained under Article 11 of the Convention of the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events. They also raised complaints under Article 13 of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. STRIKING OUT OF THE COMPLAINTS LODGED BY MR IBRAHIM IBRAHIMLI (APPLICATION NO. 27340/19)

6. The representative of Mr Ibrahim Ibrahimli, one of the applicants in application no. 27340/19, informed the Court that Mr Ibrahim Ibrahimli had died on 26 June 2021 and no heirs wanted to pursue the application in his stead.

7. In the light of the foregoing and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention

and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, decides to strike the part of application no. 27340/19 in respect of Mr Ibrahim Ibrahimli out of its list.

III. THE GOVERNMENT'S REQUEST TO STRIKE OUT THE APPLICATIONS UNDER ARTICLE 37 § 1 OF THE CONVENTION

8. The Government also submitted unilateral declarations requesting to strike out the applications out of the list. However, the declarations did not offer a sufficient basis for finding that respect for human rights as defined in the Convention does not require the Court to continue its examination of the cases (Article 37 § 1 *in fine*). The Court rejects the Government's request to strike the applications out on the basis of the unilateral declarations and will accordingly pursue their examination as regards the remaining applicants (see *Tahsin Acar v. Turkey* (preliminary objections) [GC], no. 26307/95, § 75, ECHR 2003-VI).

IV. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

9. The applicants complained principally of the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events. They relied, expressly or in substance, on Article 11 of the Convention.

10. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015).

11. In the leading case of *Mustafa Hajili and Others v. Azerbaijan,* nos. 69483/13 and 2 others, 6 October 2022, the Court already found a violation in respect of issues similar to those in the present case.

12. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were either based on legal provisions which did not meet the "quality of law" requirements established by the Convention or were not "necessary in a democratic society".

13. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

V. REMAINING COMPLAINTS

14. The applicants submitted other complaints which also raised issues under Article 13 of the Convention.

15. Having regard to the facts of the cases and its findings under Article 11 of the Convention, the Court considers that it has examined the main legal questions raised in the present applications and there is no need to give a separate ruling on the remaining complaints (see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 156, ECHR 2014).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and making its assessment on an equitable basis, the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claim for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Decides* to strike out the part of application no. 27340/19 concerning the applicant Mr Ibrahim Ibrahimli;

3. *Takes note* of the Government's unilateral declarations and *rejects* their request to strike the applications out of its list of cases under Article 37 of the Convention as regards the remaining applicants;

4. *Declares* the complaint under Article 11 of the Convention concerning the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events admissible and *finds* that there is no need to examine separately the remaining complaints;

5. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events;

6. *Holds*
   (a) that the respondent State is to pay each applicant, with exception of Mr Ibrahim Ibrahimli, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

7. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 8 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President

APPENDIX

List of applications raising complaints under Articles 11 and 13 of the Convention
(prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events and lack of effective domestic remedies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location Date of the public event planned	Restrictions applied	Final domestic decision Name of the court Date	Amount awarded for non-pecuniary damage per applicant, with exception of Mr Ibrahim Ibrahimli (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	53360/18 30/10/2018 (3 applicants)	**Khalid Zakir oglu BAGIROV** 1976 **Samira Rafail gizi AGAYEVA** 1978 **Namizad Heydar oglu SAFAROV** 1955	Khalid BAGIROV Baku	The stadium of Sports-Health Complex of the Yasamal District (the former "Mahsul" stadium), Baku 18/11/2017	Prohibition on holding the planned public assembly	Supreme Court, 28/06/2018	1,500	-

[1] Plus any tax that may be chargeable to the applicants.
[2] Plus any tax that may be chargeable to the applicants.

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location Date of the public event planned	Restrictions applied	Final domestic decision Name of the court Date	Amount awarded for non-pecuniary damage per applicant, with exception of Mr Ibrahim Ibrahimli (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
2.	27340/19 07/05/2019 (3 applicants)	**Ilham Telman oglu HUSEYNOV** 1983 **Ali Amirhuseyn oglu KARIMLI** 1965 **Vahid Ayyub oglu MAHARRAMOV** 1958 ****** **Ibrahim IBRAHIMILI** Deceased in 2021	Ruslan MUSTAFAZADE Sumgayit Asabali MUSTAFAYEV Sumgayit	"Huseyn Javid" park or any of four other places proposed by the applicants, Baku 04/03/2018	Proposal to change the location, proposal to change the time	Supreme Court, 13/11/2018	1,500	250 (to be paid directly to the representative Mr Asabali Mustafayev's bank account)